

25VECV03027 25VECV03027

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-21

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25VECV03027 Messersmith v FCA

Plaintiff seeks an order compelling compliance with CCP section 871.26 (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). The categories requested are set forth below:

(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins ("TSBs") 1 for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

Plaintiff insists that verified disclosure is required yet there is nothing in the statute that requires the disclosure to be verified. Therefore, that part of the motion is denied. CCP section 2016.090 is applicable to a different brand of disclosure, not under the Lemon Law statutes.

The biggest issue that the court has with the motion is that plaintiff has not identified what has not been provided, arguing that without a verification, they cannot determine whether there has been compliance. To the contrary, it is plaintiff's burden to establish what is missing.

In opposition, defendant contends that it complied by providing the documents that are required by the statute. The court agrees with defendant that the initial disclosures are not intended to be a complete discovery of every possible document that plaintiff seeks. Instead, the court believes the purposes is to provide the requested information which will be of use in the initial mediation process. Discovery can proceed after the mediation. The initial disclosures are not intended to be a substitute for verified discovery responses later.

The court agrees with defendant that it is only required to produce the documents requested. Plaintiff has not alleged what specific documents are missing or how the production does not comply. Plaintiff argues, instead, that in addition to the production, there are more internally available documents which show more detailed information than what was produced. Plaintiff is overreaching.

The court does not find that plaintiff's motion is well taken. In light of evidence that all categories of documents were produced, the court finds it acceptable for purposes of the initial disclosure requirements and denies the motion. There is no prejudice to plaintiff as plaintiff will be allowed to engage in discovery for additional documents once mediation is completed.

The motion is denied. The request for sanctions is denied.